NDA playbook

NDA-DEMO-1.0 | Sample mutual evaluation NDA | Disclosing-party perspective

ISSUE	STANDARD	FALLBACK	ESCALATE AND OWNER
Term and trade secrets	Five years for ordinary information after expiry or termination; trade secrets protected while qualifying under applicable law.	Three years after expiry or termination for ordinary information, with Legal approval; preserve the trade-secret distinction.	No survival, rolling short expiry, or a finite trade-secret cutoff. Legal + IP owner. Five years is a policy assumption, not a statutory term.
Purpose and AI use	Use only to evaluate the stated project. No shared-model training or unrelated commercial use.	Clarify purpose and permitted systems. Broader use needs Legal review; no training permission implied.	Broader internal-business or commercialization use: YELLOW Legal review. Shared-model training or personal data: RED specialist hold; any RED trigger prevails.
Residuals	No residuals or unrestricted remembered-information exception.	Propose deletion or narrowing; any surviving residuals right remains RED. The counterproposal is not acceptance authority.	Any residuals right: immediate RED Legal + IP hold, including narrowed wording. Do not wait for insistence; no automatic acceptance.
Representatives	Need-to-know access, equivalent confidentiality obligations, and recipient responsibility for representatives.	Legal may approve a defined professional-duty carveout for independent advisers, without open-ended onward disclosure.	Unrestricted affiliates or financing sources, or a blanket responsibility disclaimer. Legal + business owner.
Compelled disclosure	Only disclosure legally required; advance notice and cooperation to the extent lawful.	Notice as soon as legally permitted; reasonable assistance at the discloser's expense if agreed.	An unlawful notice duty or disclosure of more than required. Legal; route any actual order to litigation counsel.
Return and destruction	Return or destroy within 30 days of request or end; confirm completion if requested.	Limited legal retention and inaccessible routine backups, continuing confidentiality, no active use; Legal validates feasibility.	Indefinite convenience retention, re-use, or training after exit. Legal + IT; Privacy if personal data is involved.
Scope and authority	Mutual routine evaluation only; verified entities, no extra commercial obligations, documented signature authority.	Correct entity details and schedules before release. Modified paper goes to client Legal.	Exclusivity, noncompete, express unlimited liability, export/sanctions alerts or controlled technology: RED specialist hold.

GREEN eligibility requires unchanged approved paper, routine purpose, no personal data/controlled technology, verified entities and documented authority. Route modifications and exceptions to Legal; obtain named approval for RED issues before signature.